

26NWCV000032 26NWCV000032

County: los-angeles

Division: Civil Law and Motion

Department: L

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Case Number: 26NWCV000032 Hearing Date: July 14, 2026 Dept: L

Defendant Rosa Patterson's

Demurrer to the Complaint is OVERRULED.

Defendant is ordered to file

an answer within 10 days of this order.

Defendant to give notice.

Background

This is an action for partition

regarding real property located at 4165 Sebren Ave, Lakewood, CA 90713-3014

("Subject Property"). On January 5, 2026, Plaintiff Bobby Patterson

("Plaintiff") filed this action against Defendants Rosa Patterson, Nationstar

Mortgage LLC, Mortgage Electronic Registration Systems, Inc., and Does 1 to 10.

The Complaint alleges that the parties acquired their interest acquired their

interests in the Subject Property as joint tenants through a Grant Deed dated

April 21, 2005, and recorded on May 27, 2005. (Compl., Exh. B.)

On March 2, 2026, Defendant

Rocket Mortgage, LLC was named as Doe 1.

Defendant Rosa Patterson now

demurs to the Complaint.

Plaintiff filed an opposition on

June 29, 2026. No reply has been filed as of July 13, 2026.

Requests for Judicial Notice

Defendant's Requests for Judicial

Notice of the following documents are granted:

- Exhibit

A – January 5, 2026, Summon and Partition Action filed in LASC Case No. 26NWCV00032 caption Bobby Patterson v. Rosa Patterson.

- Exhibit

B – October 19, 2022, Petition for Dissolution of marriage filed in LASC Case No. 22WHFL01798.

- Exhibit

C – December 21, 2022, Request to Enter Default filed LASC Case No. 22WHFL01798.

- Exhibit

D – February 1, 2023, Judgment of Dissolution filed in LASC Case No. 22WHFL01798.

- Exhibit

E – April 21, 2005, Grant Deed.

- Exhibit

F – December 1, 2025, Request for Emergency Orders filed in LASC Case No. 22WHFL01798.

- Exhibit

G – December 4, 2025, Request for Emergency Orders filed LASC Case No. 22WHFL01798.

Legal Standard

“[A] demurrer tests

the legal sufficiency of the allegations in a complaint.” (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (See Donabedian v. Mercury Ins. Co. (“Donabedian”) (2004) 116 Cal.App.4th 968, 994

[in ruling on a demurrer, a court may not consider declarations, matters not subject to judicial notice, or documents not accepted for the truth of their contents].) For purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true, but the reviewing court does not assume the truth of conclusions of law. (Aubry v. Tri-City Hosp. Dist. (1992) 2 Cal.4th 962, 967.)

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Id.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) However, “[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.” (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245.)

Meet and Confer

Code of Civil

Procedure section 430.41 requires that the parties meet and confer “in person, by telephone, or by video conference.” (Code Civ. Proc., § 430.41, subd. (a).)

Counsel met and conferred via telephone and written communication regarding the issues in this Demurrer but were unable to come to a resolution. (Lewis Decl., ¶¶ 4-5; Gold Decl., ¶¶ 6-7, Exh. 7.) The Court finds that the meet and confer requirement has been met.

Discussion

Defendant provides the following context regarding this action: On April 21, 2005, the parties purchased the Subject Property during their marriage as joint tenants. (RJN, Exh. E.) On October 19, 2022, Plaintiff filed a petition for dissolution of marriage in Los Angeles County Superior Court under Case No. 22WHFL01798 (hereinafter, “Dissolution Matter”). (RJN, Exh. B.) On February 1, 2023, the family court entered the Judgment of Dissolution (RJN, Exh. D.) On December 1, 2025, Plaintiff filed a request for temporary emergency orders in the Dissolution Matter seeking an order shortening time to divide the Subject Property. The Court

denied the request, ruling that Plaintiff has not “articulated reason why the request could not be made through noticed motion.” (RJN, Exh. F.) On December 4, 2025, Plaintiff filed the same request, and it was denied again. (RJN, Exh. G.) Plaintiff filed this partition action on January 5, 2026.

Defendant makes three primary arguments in this Demurrer: 1) this action is barred by Code of Civil Procedure section 872.210, subdivision (b), 2) the family court that adjudicated the Dissolution Matter retains exclusive jurisdiction to determine the division of omitted community property pursuant to Family Code section 2556, and 3) this action is an improper motion for reconsideration.

The Court will address each argument in turn.

i.

Whether this Action is Barred by CCP § 872.210

Defendant argues that this action is barred by Code of Civil Procedure section 872.210, subdivision (b), which states the following: “[A]n action between spouses or putative spouses for partition of their community or quasi-community property or their quasi-marital interest in property may not be commenced or maintained under this title.” (Code Civ. Proc., § 872.210, subd. (b).)

In opposition, Plaintiff argues that this action is not an attempt to adjudicate the parties’ marital interests in the Subject Property outside of family court. Rather, Plaintiff seeks to adjudicate the parties’ interest in the property as joint tenants after the conclusion of their divorce. Code of Civil Procedure section 872.210, subdivision (b) does not apply here because the parties are no longer spouses.

The Court agrees with Plaintiff. Because the parties are no longer spouses, this action is not an “action between spouses” for purposes of Code of Civil Procedure section 872.210, subdivision (b). Thus, this action is not barred by that section.

ii.

Jurisdiction

Defendant also asserts that the family court that adjudicated the Dissolution Matter retains exclusive jurisdiction to determine the division of unadjudicated community property, citing Family Code section 2556. In other words, this civil court has no jurisdiction to adjudicate division of the Subject Property.

In opposition, Plaintiff argues that, while Family Code section 2556 states that a family court retains “continuing jurisdiction” to adjudicate division of community property after judgment, such jurisdiction is not exclusive. Regardless of whether the family court retained continuing jurisdiction here, under the exclusive jurisdiction rule, when two courts have concurrent jurisdiction over the over the subject matter and parties, the first court to obtain jurisdiction has exclusive and continuing jurisdiction. Here, Plaintiff filed his partition action on January 5, 2026, giving this Court jurisdiction over the Subject Property, and served Defendant on January 10, 2026, giving this Court jurisdiction over Defendant. (Gold Decl., ¶¶ 4-5.) As of the date of this opposition, Defendant has not filed and served a postjudgment motion in the family court action pursuant to Family Code section 2556. (Gold Decl., ¶ 9.) Thus, Plaintiff argues that this Court has exclusive jurisdiction over this matter.

The Court provides context for Family Code section 2556. Prior to the enactment of section 2556, community estate assets not before the court in a dissolution or otherwise left unadjudicated by the judgment, or “omitted assets”, were subject to later litigation between the parties. (See *Henn v. Henn* (“Henn”) (1980) 26 Cal.3d 323, 330 [“[U]nder settled principles of California community property law, ‘property which is not mentioned in the pleadings as community property is left unadjudicated by decree of divorce, and is subject to future litigation, the parties being tenants in common meanwhile.’”].) Such independent civil actions—known as “Henn proceedings”—were the only avenue for postjudgment property claims. Acting on criticism that Henn proceedings were expensive and burdensome on judicial resources, the Legislature enacted Family Code section 2556 in 1990 to authorize postjudgment adjudication of “Henn-type” claims in the underlying family law action. (See *In re Marriage of Hixson* (2003) 111 Cal.App.4th 1116, 1121.)

Family Code section 2556 states the following:

“In

a proceeding for dissolution of marriage, for nullity of marriage, or for legal separation of the parties, the court has continuing jurisdiction to award community estate assets or community estate liabilities to the parties that have not been previously adjudicated by a judgment in the proceeding. A party may file a postjudgment motion or order to show cause in the proceeding in order to obtain adjudication of any community estate asset or liability omitted or not adjudicated by the judgment. In these cases, the court shall equally divide the omitted or unadjudicated community estate asset or liability, unless the court finds upon good cause shown that the interests of justice require an unequal division of the asset or liability.”

(Fam. Code, § 2556, emphasis added.)

Considering the history and language of Family Code section 2556, the Court agrees with Plaintiff's interpretation. While a family court has continuing jurisdiction to adjudicate division of community property after judgment upon a party's filing of a postjudgment motion, such jurisdiction is not exclusive. Family Code section 2556 states that a party “may” file such postjudgment motion, not that a party must do so. Family Code section 2556 only authorizes “an alternative procedure” to accomplish the object of an action authorized under Henn. (11 Witkin, Summary 11th Com. Prop § 258 (2026). Thus, the Court finds that the family court's continuing jurisdiction under Family Code section 2556 does not necessarily bar this Henn-type action.

Moreover, under the rule of exclusive concurrent jurisdiction, “when two [California] superior courts have concurrent jurisdiction over the subject matter and all parties involved in litigation, the first to assume jurisdiction has exclusive and continuing jurisdiction over the subject matter and all parties involved until such time as all necessarily related matters have been resolved.” (People ex rel. Garamendi v. American Autoplan, Inc. (1993) 20 Cal.App.4th 760, 769-70.) Here, there is no pending postjudgment motion in the family court. (Gold Decl., ¶ 9.) Plaintiff filed this action and served Defendant, through which the Court obtained jurisdiction over the Subject Property and Defendant. (Gold Decl., ¶¶ 4-5.) Thus, this Court has exclusive jurisdiction over this matter.

Thus, the Demurrer cannot be sustained on these grounds.

iii.

Improper Motion for Reconsideration

Defendant argues that this action is an improper motion for reconsideration pursuant to Code of Civil Procedure section 1008. Specifically, Defendant asserts that Plaintiff's filing this partition action effectively seeks improper reconsideration of the divorce court's denial of Plaintiff's December 1, 2025, and December 4, 2025, emergency requests for orders shortening time for a hearing to divide the subject property. Defendant requests sanctions in the amount of \$8,000.00 under Code of Civil Procedure section 1008, subdivision (d).

In opposition, Plaintiff asserts that this action is not a motion for reconsideration. Plaintiff's previous ex partes in the family court sought an order shortening time to hold a hearing to divide the Subject Property, and the family court denied the ex partes on procedural grounds. There was no adjudication on the merits of any postjudgment motion. In other words, there is no order for this Court to reconsider. Further, motions for reconsideration must be heard in the same court in front of the same judge.

Relatedly, Plaintiff argues that Defendant's request for sanctions is procedurally and substantively deficient. The request is procedurally deficient because Code of Civil Procedure section 128.7 sanctions, which are authorized by Code of Civil Procedure section 1008, subdivision (d), must be filed in a separate motion. The request is substantively deficient because Plaintiff has committed no violation of Code of Civil Procedure section 1008, as explained previously.

The Court agrees with Plaintiff.

Plaintiff has filed no improper motion for reconsideration that warrants sanctions. As discussed in the prior section, Plaintiff's partition action is valid. No postjudgment motion under Family Code section 2556 is pending or has been ruled upon in the family court.

Thus, the Court denies

Defendant's request for sanctions under Code of Civil Procedure section 1008, subdivision (d).

Conclusion

Based on the foregoing, the
Demurrer is overruled.